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विश्वविद्यालय अनुदान आयोग

अधिसूचना

नई दिल्ली, 29 अगस्त, 2017

यू.जी.सी. (समवत विश्वविद्यालय श्रेष्ठ संस्थान) विनियम, 2017

सं. एफ. 1-4/2016(सीपीपी-I/डीयू).—प्रस्तावना :

विश्वविद्यालय अनुदान आयोग अधिनियम, 1956 की धारा 26 की उपधारा (1) के खंड (एफ) और (जी) के अंतर्गत प्रदान की गई शक्तियों का प्रयोग करते हुए सम-विश्वविद्यालय की एक विशिष्ट श्रेणी बनाने के लिए जिन्हें उत्कृष्ट सम-विश्वविद्यालय संस्थान कहा गया है, समवत विश्वविद्यालय से भिन्न तरीके से विनियंत्रित किया जायेगा ताकि उचित समयावधि में विश्वस्तरीय संस्थान विकसित हो सके। निम्नलिखित विनियम बनाता है अर्थात:-

1. संक्षिप्त नाम, आवेदन और आरंभ

1.1 इन विनियमों को विश्वविद्यालय अनुदान आयोग (समवत विश्वविद्यालय श्रेष्ठ संस्थान) विनियम 2017 कहा जायेगा।

1.2 ये विनियम सरकार के स्वामित्व और नियंत्रण के अंतर्गत न आने वाले प्रत्येक मौजूदा अथवा प्रस्तावित संस्थान पर लागू होंगे जो इन विनियमों के अंतर्गत उत्कृष्ट सम-विश्वविद्यालय संस्थान के रूप में घोषित किया जाना चाहते हैं अथवा घोषणा की मांग करने वाले हैं।

1.3 ये विनियम, यथा उल्लिखित सीमा तक सरकार के स्वामित्व और नियंत्रणाधीन समवत विश्वविद्यालयों पर लागू होंगे जिन्हें यू.जी.सी. (प्रतिष्ठित संस्थान के रूप में सरकारी शैक्षिक संस्थाओं की घोषणा) दिशा-निर्देशों, 2017 के अंतर्गत प्रतिष्ठित संस्थान घोषित किया गया है।

1.4 ये विनियम अथवा यू.जी.सी. (प्रतिष्ठित संस्थान के रूप में सरकारी शैक्षिक संस्थाओं की घोषणा) के अंतर्गत निर्धारित दिशा-निर्देश, 2017 के तहत “समवत विश्वविद्यालय श्रेष्ठ संस्थान” के रूप में घोषित किये गये सम-विश्वविद्यालय इन विनियमों के अंतर्गत अधिनियमित किये जायेंगे और केवल दिशा-निर्देश एवं यू.जी.सी. विनियम, समवत विश्वविद्यालय श्रेष्ठ संस्थान जैसे संस्थानों पर लागू नहीं होंगे।

1.5 ये विनियम शासकीय गजट में इस अधिसूचना के प्रकाशित होने की तिथि से प्रभाव में लागू होंगे।

23.3 यूजीसी सदस्यों को भुगतान किए जाने वाले मानदेय सहित अधिकार प्राप्त विशेषज्ञ समिति को शामिल करके कार्यक्रम को सभी सचिवालयी सहायता प्रदान करेगा। अधिकार प्राप्त विशेषज्ञ समिति द्वारा घरेलू या अंतर्राष्ट्रीय विशेषज्ञ की वृद्धि के कारण हुए व्यय को भी यूजीसी वहन करेगा। पदों के सर्जन के लिए कोई उपबंध नहीं होगा।

पी. के. ठाकुर, सचिव

[विज्ञापन-III/4/असा./205/17]

UNIVERSITY GRANTS COMMISSION

NOTIFICATION

New Delhi, the 29th August, 2017

UGC (Institutions of Eminence Deemed to be Universities) Regulations, 2017

No. F. 1-4/2016(CPP-I)/DU.—PREAMBLE :

To create a distinct category of Deemed to be Universities, called Institutions of Eminence Deemed to be Universities, which would be regulated differently from other Deemed to be Universities so as to evolve into Institutions of world class in a reasonable time period, the University Grants Commission, in exercise of powers conferred under Clauses [f] & [g] of Sub-Section [1] of Section 26 of the University Grants Commission Act, 1956, hereby, makes the following Regulations, namely:-

1.0 SHORT TITLE, APPLICATION AND COMMENCEMENT

- 1.1 These Regulations may be called the UGC (Institutions of Eminence Deemed to be Universities) Regulations, 2017.
- 1.2 These Regulations shall apply to every existing or proposed Institution, not owned or controlled by Government, seeking declaration or having been declared as an Institutions of Eminence Deemed to be University under these Regulations.
- 1.3 These Regulations shall also apply to Government owned and controlled Deemed to be Universities which have been declared Institutions of Eminence under UGC (Declaration of Government Educational Institutions as Institutions of Eminence) Guidelines, 2017, to the extent mentioned in these Regulations.
- 1.4 The Deemed to be Universities declared as “Institutions of Eminence Deemed to be Universities” under these Regulations or under UGC (Declaration of Government Educational Institutions as Institutions of Eminence) Guidelines, 2017 shall be regulated under these Regulations and Guidelines only and the UGC (Institutions Deemed to be Universities) Regulations, 2016 shall not apply to such Institutions of Eminence Deemed to be Universities.
- 1.5 These Regulations shall come into force with effect from the date of their notification in the Official Gazette.

2.0 DEFINITIONS

In these Regulations, unless the context otherwise requires:

- 2.01 “Act” means the University Grants Commission Act, 1956 [Act 3 of 1956].
- 2.02 “Campus” means Campus of the Institutions of Eminence Deemed to be University; wherein its major facilities including academic facilities, faculty, staff, and students are located in India.
- 2.03 “Commission” means the University Grants Commission (UGC) constituted under the Act or any other body empowered to regulate an institution deemed to be university under any law for the time being in force.
- 2.04 “Constituent Institution” means an Institution operating under the administrative, academic and financial control of the Sponsoring Organization.
- 2.05 “Empowered Experts Committee” means a Committee constituted by the Commission to exercise the powers conferred by Regulations 7 of these Regulations.

- 2.06 “Government” means the Central Government, unless the context so specifies.
- 2.07 “Guidelines” means UGC (Declaration of Government Educational Institutions as Institutions of Eminence) Guidelines, 2017.
- 2.08 “Institution” means an Institution for higher education engaged in teaching and research of high academic standards at the undergraduate, post-graduate or higher levels.
- 2.09 “Institution Deemed to be University” means an Institution for higher education so declared, on the recommendation of the Commission, by the Central Government under Section 3 of the Act.
- 2.10 “Ministry” means Ministry of Human Resource Development.
- 2.11 “Notification” means a notification issued by the Central Government in the Official Gazette declaring an Institution for higher education, as an Institutions of Eminence Deemed to be University, under Section 3 of the UGC Act, 1956.
- 2.12 “Off-Campus Centre” means a centre of the Institutions of Eminence Deemed to be University beyond its Campus and located elsewhere in the country.
- 2.13 “Off-Shore Campus” means a campus of the Institutions of Eminence Deemed to be University beyond its Campus and located outside India.
- 2.14 “Processing Fee” means the charges that have to be paid by the applicant Institution to the Commission along with the application for processing such application. The Processing Fee shall be Rupees one crore for Institutions which apply for the status of Institutions of Eminence Deemed to be University. The Commission may revise it from time to time.
- 2.15 “Professional Regulatory Council” means a body constituted under any law for the time being in force for determining or maintaining standards of quality in the relevant areas of higher education pertaining to professional education and bodies such as Medical Council of India (MCI), Dental Council of India (DCI), National Council for Teacher Education (NCTE) and Bar Council of India (BCI), etc.
- 2.16 “Sponsoring Organization” means a body being a charitable or a not-for-profit Society or a public Trust or a Company incorporated under Section 8 of the Companies Act, 2013 making an application to upgrade its existing Institution Deemed to be University into an Institutions of Eminence Deemed to be University or to establish a new Institutions of Eminence Deemed to be University.
- 2.17 “Institutions of Eminence Deemed to be University” means an Institution declared as such under these Regulations and which shall be distinct from “Deemed to be Universities” declared under UGC (Institutions Deemed to be Universities) Regulations, 2016.

3.0 **OBJECTIVES OF INSTITUTIONS OF EMINENCE DEEMED TO BE UNIVERSITIES**

The objectives of Institutions of Eminence Deemed to be Universities shall be:

- 3.1 to provide for higher education leading to excellence and innovations in such branches of knowledge as may be deemed fit at post-graduate, graduate and research degree levels and award degrees, diplomas and other academic distinctions;
- 3.2 to engage in areas of specialization to make distinctive contributions to the objectives of the university education system wherein the academic engagement is clearly distinguishable from programmes of an ordinary nature and is tuned to developing the capacity of the students and the researchers to compete in the global tertiary education marketplace through the acquisition and creation of advanced knowledge in those areas;
- 3.3 to provide for high quality teaching and research and for the advancement of knowledge and its dissemination through various research programmes undertaken in- house by substantial number of full time faculty and research scholars in diverse disciplines;
- 3.4 to pay special attention to teaching and research in unique and emerging areas of knowledge, including interdisciplinary areas, which are regarded as important for strategic needs of the country but are not being pursued by conventional or existing institutions so far, and award degrees, diplomas and other academic distinctions.

- 3.5 to aim to be rated internationally for its teaching and research as a top hundred Institution in the world over time.

4.0 **CHARACTERISTICS OF INSTITUTIONS OF EMINENCE DEEMED TO BE UNIVERSITIES**

- 4.1 Notable features present in existing international institutions of global repute, which figure at the top in all reputed ranking frameworks, include the following:

- i. Highly qualified faculty, with freedom to hire from across the world;
- ii. Existence of academic, administrative and financial autonomy;
- iii. Excellence in research;
- iv. High Quality of teaching;
- v. High levels of funding;
- vi. Adequate financial assistance to meritorious students to support a need-blind admissions process;
- vii. Selection of students through a transparent system so as to ensure intake of meritorious students;
- viii. A significant proportion of international students;
- ix. Autonomous governance structures;
- x. Well-equipped facilities for teaching, research, administration, and student life;
- xi. Tangible and intangible contribution to the society; and
- xii. Ability to leverage alumni and alternative funding sources, and the autonomy to utilize these resources

- 4.2 While an Institution declared as an Institution of Eminence Deemed to be University is free to choose its path to become an institution of global repute, an indicative list of parameters, the institute should satisfy within a reasonable time from the date of notification declaring it as an Institution of Eminence Deemed to be University are as follows:

- 4.2.1 It should preferably be multi-disciplinary or inter-disciplinary and have both teaching and research focus of an exceptionally high quality.
- 4.2.2 It should offer inter-disciplinary courses, including in areas of emerging technology and interest as well as those of relevance to the development concerns of countries like India and also award degrees, diplomas and other academic distinctions in such interdisciplinary areas.
- 4.2.3 It should have a good proportion of foreign or foreign qualified faculty. Foreign / foreign qualified faculty means:
 - a. Any faculty of non Indian citizenship. Or
 - b. Any Indian citizen who has spent considerable time in academics in a foreign country, with his academic qualification /experience from top 500 Institutions figuring in a reputed world ranking.
- 4.2.4 There should be a reasonably good mix of Indian and foreign students.
- 4.2.5 There should be a transparent merit based selection in admissions, so that the focus remains on getting meritorious students.
- 4.2.6 The admission process should be need-blind – so that once a student gets admission purely on merit, such a meritorious student should not be turned away for lack of financial ability.
- 4.2.7 The faculty student ratio should be not be less than 1:20 at the time of notification issued declaring an Institution as an Institution of Eminence and should increase over time so as not to be less than 1:10 after five years of this date. The faculty for this purpose includes the regular

- faculty, adjunct faculty, and long term faculty (for at least three years). Part time faculty shall not be counted for the purpose.
- 4.2.8 There should be laboratory facilities to undertake cutting-edge scientific research for those Institutions of Eminence Deemed to be Universities doing scientific research. In case of humanities, social science and other interdisciplinary areas, the faculty should be engaged in research and field work in frontier areas using the latest methodologies.
- 4.2.9 The Institution of Eminence Deemed to be University should strive to achieve social impact by engaging in applied research and innovation in issues of concern to developing societies.
- 4.2.10 The Institution of Eminence Deemed to be University should develop teaching and research collaborations with a reasonable number of global universities figuring in the most reputed global rankings.
- 4.2.11 (i) The Institution of Eminence Deemed to be University should have:
- a) For existing private Institution, an initial corpus fund of Rupees 60 crore which would be increased at an annual uniform rate to Rupees 150 crore in ten years time and guaranteed pipeline of Rupees 500 crore, along with a credible plan for additional Rupees 500 crore.
 - b) For yet to be established institutions, an initial corpus fund of Rs 60 crore which would be increased at an annual uniform annual rate to Rs 150 crore in ten years time and guaranteed pipeline of Rs 500 crore, along with a credible plan for additional Rs 1000 crore.
- (ii) The source of funds should be known and should be available for scrutiny by competent authorities.
- 4.2.12 The Institution of Eminence Deemed to be University should be known for promoting a culture where faculty are encouraged to publish regularly in peer-reviewed journals and engage academically with the issues of concern to the society. It should have a record of research publications at the mean rate of at least one per faculty member each year in reputed peer-reviewed international journals based on publication made by top 100 global Universities in these journals. For this purpose:
- a. Any paper published in international publications which are included in SCOPUS, Web Science or similar international agencies can be counted.
 - b. Instead of every faculty required to be satisfying the publication criteria, it would be enough if the parameters is satisfied as an average across the institution.
- 4.2.13 The Institution of Eminence Deemed to be University should have a world-class library with subscriptions to reputed journals in the areas of courses it is offering.
- 4.2.14 The Institution of Eminence Deemed to be University should have student amenities comparable with that of globally reputed institutions.
- 4.2.15 The Institution should be accredited by National Assessment and Accreditation Council (NAAC) or an alternative version of NAAC which conforms to UGC (Institutions of Eminence Deemed to be Universities) Regulations, 2017 or its amendments and also be assessed by atleast one reputed international accreditation agency, one whose ratings are a credible and widely accepted global benchmark. The Institution may however appeal on accreditation of NAAC or alternative version of NAAC to the Empowered Experts Committee, whose decision shall be final.
- 4.2.16 The Institution of Eminence Deemed to be University should have reasonably large owned / long term leased (at least thirty years) campus with adequate space for expansion.
- 4.2.17 The governance structure of the Institution of Eminence Deemed to be University should be distinct from the governance structure of the Sponsoring Organization.
- 4.2.18 The Institution of Eminence Deemed to be University should achieve a student enrolment of at least ten thousand over a period of fifteen years. However, the institutions may project a lower

figure as its enrolment target with justification on how that enrolment figure would enable it to become a world class university.

- 4.2.19 It should come in top five hundred of any of the world renowned ranking frameworks (such as the Times Higher Education World University Rankings or QS or Shanghai's Jiao Tong University) in the first ten years of setting up on being declared as Institution of Eminence, and having achieved top five hundred rank, should consistently improve its ranking to come in the top one hundred eventually over time.

4.3 The Institution giving an application to be declared as an Institution of Eminence, should in its proposal mention the detailed and tangible action plan, milestones, and timelines by which it seeks to achieve each of the parameters laid down in Regulation 4.2, mentioning milestones to be achieved in first five years and over 15 years.

5.0 PROVISION REGARDING DECLARATION OF AN EXISTING GOVERNMENT OWNED AND CONTROLLED DEEMED UNIVERSITY AS AN INSTITUTION OF EMINENCE DEEMED TO BE UNIVERSITY

- 5.1 The UGC (Declaration of Government Educational Institutions as Institutions of Eminence) Guidelines 2017 would apply to existing Government owned and controlled Deemed to be University which seeks to become Institution of Eminence.
- 5.2 Such an Institution will have to apply to MHRD as per the provisions given in the Guidelines and the selection procedure would be as per the provisions given in the Guidelines.
- 5.3 If such Deemed to be University is declared as an Institution of Eminence under the Guidelines, then it would be eligible to be called "Institution of Eminence Deemed to be University".
- 5.4 The funding, additional incentives, monitoring, accreditation ranking and penalty, of such Government owned and controlled Institutions shall be as provided for in the Guidelines.
- 5.5 Provisions in these Regulations regarding distance education, unitary status and Reservation would also apply to such Government owned and controlled Institution of Eminence Deemed to be University.

6.0 ELIGIBILITY CRITERIA FOR DECLARATION OF A PRIVATELY OWNED AND CONTROLLED INSTITUTIONS TO BE CONFERRED THE STATUS OF INSTITUTION OF EMINENCE DEEMED TO BE UNIVERSITY

6.1 The proposed Institution of Eminence Deemed to be University should satisfy the following provisions:

- (i) It should be an Institution which has been established as a private Deemed to be University satisfying all the provisions of the UGC (Institutions Deemed to be Universities) Regulations, 2016 or established under a law made by a Legislative Assembly of any State satisfying all conditions laid down under UGC (Establishment of and Maintenance of Standards in Private Universities) Regulations, 2003 as amended; or it should make a completely new proposal to establish an Institution of Eminence Deemed to be University.
- (ii) The Sponsoring Organization shall be not-for-profit society or a public trust or a company constituted under Section 8 of the Companies Act, 2013.
- (iii) The Sponsoring Organization for greenfield institutions should have members whose total net worth is at least Rupees five thousand crore collectively. For existing institutions, the total networth of all members of Sponsoring Organisation should be Rupees three thousand crore collectively.
- (iv) The Sponsoring Organization should have atleast some members whose credentials, as borne out by their record and to the satisfaction of the Empowered Experts Committee, indicate that they are committed to the objectives laid out in Regulation 4.
- (v) The Sponsoring Organisation should have identified the first Chancellor and first Vice-Chancellor and the core team who will implement the work of setting up the Institution of Eminence Deemed to be University. All of them should have very high qualifications and wide experience.

- (vi) The institutions of Eminence Deemed to be Universities should have corpus fund and other financial resources as specified in Regulation 4.2.11.
- (vii) A detailed fifteen year strategic vision plan and a five year rolling implementation plan, with clear annual milestones and action plans on how the new Institution of Eminence Deemed to be University is to be set up, with identifiable outputs and outcomes and how it plans to meet the criteria for attaining the status of an Institution of Eminence Deemed to be University, as laid down in Regulation 4.
- (viii) The governance structure of the Institution of Eminence Deemed to be University should be distinct from the governance structure of the Sponsoring Organization. The apex Governing Body of the University should consist of members whose credentials indicate that they can contribute to achievement of the objectives laid out in Regulation 4, and not be mere representatives of some section or entity. The Sponsoring Organisation and the apex Governing Body of the University should be separate body corporate, though there could be a few members from Sponsoring Organisation in the apex Governing Body to leverage the full commitment of sponsors to deliver the desired outcomes in a very short-time frame. The governance structure should demonstrate the sponsor's commitment to an arms-length relationship between the two entities.
- (ix) It should have sufficient evidence to show that it has experience in translating plans into real achievements in any field (not necessarily in the field of higher education, but preferably in it) as per its plans.
- (x) In case of institutions established under a law passed by a Legislative Assembly of a State, they should submit an undertaking from the respective State Government that, if the University is selected as an Institution of Eminence, then:
 - i) If there is an exit clause in the existing legislation governing the institution, then the State Government would withdraw its status as an institution under the said legislation and allow it to become an Institution of Eminence Deemed to be University or
 - ii) If no such exit clause is there in the existing legislation governing the institution, then State Government would introduce an appropriate legislation in the State Legislature withdrawing its status as an institution under the said legislation.
- (xi) In case of existing institutions, appropriate consideration will be given at the time of selection to their record of adherence to the principles mentioned in Regulation 4.

7.0 EMPOWERED EXPERTS COMMITTEE

7.1 Appointment

There shall be an Empowered Experts Committee (EEC) consisting of three to five eminent persons appointed for a period of three years. The member/s shall be eligible to be reappointed for one or more terms of three years each. They will be reputed and credible individuals who have contributed to education, other public issues, economic growth and social development for a minimum period of ten years. They should have had an exceptional and untarnished record in their respective fields of excellence, and an incontrovertible and demonstrated commitment to public causes. The members of the Committee would be appointed by the Commission as advised by the Central Government, which would send the names to the Commission after taking the approval of the Appointments Committee of Cabinet (ACC). A panel of names shall be sent to ACC on the recommendation of Search Committee consisting of Cabinet Secretary as Chairperson and Secretary (Higher Education) and Chairperson (UGC) as members. ACC may either approve the names recommended by the search committee or may substitute any or all the names recommended.

7.2. Powers and functions of the EEC

The power and functions of the EEC shall include:

- (i) Scrutinizing and appraising the proposals submitted by existing Private Institutions desirous of being declared as an Institutions of Eminence Deemed to be University and from Sponsoring Organizations desirous of setting up new Institutions of Eminence Deemed to be Universities.

- (ii) Making recommendations to the Commission for the purposes of selection of Institutions of Eminence Deemed to be Universities, in accordance with Regulation 8.4.
- (iii) Monitoring and reviewing of implementation plans of Institutions of Eminence Deemed to be Universities, in accordance with Regulation 13.
- (iv) Conducting review of Institutions of Eminence Deemed to be Universities in order to ensure quality, as provided for in Regulation 11.6.2
- (v) Evolving such other monitoring and review systems with the objective of guiding and supervising the growth of Institutions of Eminence Deemed to be Universities.
- (vi) Deciding on appeals against the decision of a domestic accreditation body on relevant accreditation of the Institutions of Eminence Deemed to be Universities.
- (vii) Deciding on changes in transfer of sponsorship from any or all of the original sponsors of Institutions of Eminence Deemed to be Universities.
- (viii) Making recommendations to the Commission with respect to the liquidation of the Corpus Fund of an Institution of Eminence Deemed to be University.
- (ix) Calling for the accounts of the Institution of Eminence Deemed to be Universities to verify compliance with the corpus and other additional guaranteed and committed financing requirements.
- (x) Assessing deviations from the goals of Institutions of Eminence Deemed to be Universities and making recommendations to the Commission regarding Penalties for the same.
- (xi) Examining proposals on issues not covered in the regulations and making recommendations to the competent authorities.

8.0 PROCEDURE FOR DECLARATION AS AN INSTITUTION OF EMINENCE DEEMED TO BE UNIVERSITY

8.1 Call for application

The Commission shall call for applications, to be submitted to the Ministry of Human Resource Development, both from existing Private Institutions desirous of being declared as an Institution of Eminence Deemed to be University and also from Sponsoring Organisations desirous of setting up new Institutions of Eminence Deemed to be Universities. The advertisement shall be issued both in print media and also shall be put on the website of Commission and the Ministry of Human Resource Development. A minimum time of ninety days should be provided for submitting applications from the date of the advertisement.

8.2 Application

- 8.2.1 An application in specified format may be made by the Chancellor of an existing Private Institution Deemed to be University / existing Private University and by Sponsoring Body for an institution yet to be established to the Ministry of Human Resource Development, along with a processing fee of Rupees one crore by way of Demand Draft drawn in favour of The Secretary, University Grants Commission. The processing fee is refundable to the extent of Rupees seventy five lakh to the applicant who are not selected as Institutions of Eminence.
- 8.2.2 Every application should have two parts, a fifteen year strategic vision plan as well as a five year implementation plan. The former would be the long-term strategic plan to meet the objectives and characteristics of an Institution of Eminence and shall also contain the quantified milestones and timelines for the institution to achieve world-class repute as laid down in Regulations 3 and 4. The implementation plan should contain detailed and tangible annual action plans to achieve the objectives laid out in the strategic plan.

8.3 Accompanying documents

Each application should be accompanied by the following (as applicable as per the Category of the Institution under Regulation 1.2):

- (a) Details of members / directors of the Sponsoring Organization.

- (b) The guiding documents of Sponsoring Organisation (such as Memorandum of Association or Trust Deed) which should clearly lay down that research & education is one of the main objectives.
- (c) Supporting documents to satisfy the eligibility condition on net worth given in Regulation 6.1 (iii).
- (d) Supporting documents to satisfy the eligibility conditions on corpus and financial resources given in the Regulation 6.1 (vi).
- (e) There should be an in-principle commitment from the concerned persons to make available adequate land for the development of the Institution of Eminence Deemed to be University.
- (f) Governance structure, including apex Board, and the nature of relationship between the proposed Institution of Eminence Deemed to be University and the Sponsoring Organization.
- (g) Name and details of the Chancellor, first Vice Chancellor and the core team who will implement the work of setting up of the proposed Institution of Eminence Deemed to be University.
- (h) Details of a five year implementation plan to establish the foundations of an Institution of global repute and consisting of the following:
 - (i) An academic plan showing the courses proposed and their schedule of offering.
 - (ii) A faculty recruitment policy and plan meet the academic plan requirements. The faculty plan should strive to maintain the faculty-student ratio of atleast 1:10. A proportion of the faculty should have either studied or worked in the top-tier global Universities. This should also contain information about any proposal to draw faculty resources from industry, government, non-profit organisations etc.
 - (iii) A student admissions policy and plan to select Indian and foreign students and expand the enrolment to the desired level as mentioned in Regulation 4.2.18. The admissions policy should also contain the details of the scholarships that will be provided to ensure that meritorious selected students without adequate financial capability are not turned away.
 - (iv) A research plan indicating the research laboratories and other facilities proposed to be established. In case of humanities, social science and other interdisciplinary faculties, the research plan should indicate the broad areas and nature of field work and research sought to be done.
 - (v) A networking plan outlining the teaching and research collaborations and partnerships with private sector and foreign universities, research institutions, think-tanks, labs etc. that are proposed to be put in place.
 - (vi) An infrastructure development plan that would meet the proposed academic and admissions plans as well as all student and other amenities.
 - (vii) A financing plan, with details of the sources and estimated amounts, to meet the aforementioned plans as well as modalities for their transfer to the proposed Institution of Eminence Deemed to be University.
 - (viii) An administrative plan for getting accreditation from national and international agencies, as well as marketing and promotion.
 - (ix) A governance plan that indicates the proposed Institution of Eminence Deemed to be University's institutional structure and how it overlaps with ownership, decision-making processes and social engagement. This governance plan should be committed to the highest global standards of transparency, accountability, and efficiency.
 - (x) All these plans should signal the clear commitment of the promoters to achieve the objectives and characteristics laid down in Regulation 3 & 4 and should have actionable items with clear and quantified milestones and timelines.
 - (xi) The objective should be that the proposed Institution of Eminence Deemed to be University should stabilize and establish credibility to be on a path to become a university of global repute in the first fifteen years.

- (i) The five year implementation plan would be recast for each five year cycle, so as to achieve the objectives outlined in the fifteen year strategic plan.
- (j) A bank guarantee for Rupees ten crore, which would be forfeited if the proposed Institution of Eminence Deemed to be University is not set up within the given time.
- (k) A plan to implement the accounting standards of educational institutions as well as double independent tracking of Accounts, expenditure and reinvestment.
- (l) In case of State Private University, an undertaking from the State Government specified in Regulation 6.1 (x).
- (m) Any other information or document which the advertisement/ application format specifies.

8.4 Selection of Institutions of Eminence Deemed to be Universities

After the receipt of application, a two stage approval process would be followed – issue of Letter of Intent (LOI) initially and finally issue of order for declaration as an Institution of Eminence Deemed to be University. The applications shall be processed in the following manner:

- (a) The Ministry of Human Resource Development will forward all applications received by the last date to the Commission which would entrust it to the Empowered Expert Committee.
- (b) Simultaneously, the Commission shall also address the State Government, where the Institute is proposed to be located in case of a new Institution yet to be established, asking for its no objection, and if the State Government objection is not received in three weeks time, it shall be presumed that it has no objection.
- (c) The Empowered Expert Committee shall conduct its appraisal based on the documents submitted by the applicant as well as any other measure of demonstrated commitment to the cause of developing an Institution of Eminence. This appraisal will be a table one, involving scrutiny of papers submitted, along with multiple interactions with the representatives of the Sponsoring Organizations, and may also involve any field visit. The Empowered Experts Committee shall engage with the Institutions to study their proposals, hear presentations from them and after a thorough scrutiny, rank the Institutions for their suitability for inclusion in this scheme, based on which the Empowered Experts Committee would make its recommendations. The EEC will also give names of additional institutions apart from the ten institutions in order of merit as reserved institutions.
- (d) The recommendations of the Empowered Expert Committee shall be submitted to the Commission, which shall forward it to Ministry of Human Resource Development within fifteen days of receipts of the recommendations.
- (e) The Ministry of HRD will issue a Letter of Intent (LOI), or otherwise, within two weeks of receipt of the recommendations under Regulation 8.4(d).
- (f) The EEC will conduct yearly review of the progress made by the Institutions to whom LoI has been issued, to ascertain whether the progress made by the institute is commensurate with time considering that Institute has to be ready for commencing the academic operations within the time stipulated in LOI. In case EEC is satisfied that the progress of any institute is not commensurate, it will ask the Institution to rectify the situation within a time frame prescribed by EEC and if still not rectified by the end of the time period given, the EEC may recommend withdrawal of LOI of that institute. The Government will examine the recommendation and may pass orders cancelling LOI and may also issue LOI to the next Institute in the reserve list.
- (g) The Sponsoring Organization in case of new Institution or the University, in case of existing Institution, will set up or upgrade, as the case may be, the Institution and indicate its readiness for commencing academic operations, as per the plan within three years of issue of Letter of Intent. For extension of this period for a maximum six months, it will have to apply to the Ministry of Human Resource Development specifically for the same giving the reasons for delay.
- (h) Once the indication for readiness for commencing academic operations is received in the Ministry of Human Resource Development, the Ministry of Human Resource Development shall send it to Commission which shall ask the Empowered Experts Committee to do an assessment of readiness in thirty days' time and send the report to the Commission. The report of Empowered Experts

Committee shall be placed before the Commission, which shall forward it to the Ministry of Human Resource Development, within fifteen days.

- (i) The Institution can also get the assessment done, in parallel, if it wishes too, through a third party international agency which has accredited at least ten Institutions from the top hundred Institutions in a reputed global ranking index. In case of difference between Empowered Experts Committee assessment and the independent assessment, the Empowered Experts Committee shall re-examine the proposal and its conclusions will be final.
- (j) Based on the recommendations of the Empowered Experts Committee, as approved by the Commission, the Ministry of Human Resource Development, shall issue orders on selection of Institutions under this scheme.
- (k) The LOI issued to the Sponsoring Organisation is non transferable. The composition of Sponsoring Organisation cannot be changed. In exceptional circumstances like death and bankruptcy, the EEC, for the reasons to be recorded in writing, may allow, the composition of the sponsoring Organisation to be changed, subject to the condition that the new Member / Members satisfy to the EEC, the condition given in Regulation 6.1(iv).

8.5 SIGNING OF Memorandum of Understanding

The strategic and implementation plans for each Institution of Eminence Deemed to be University would be converted into a Memorandum of Understanding (MoU) that shall guide and govern the development of the Institution during that period. It shall be revised every five years to incorporate the new implementation plan. In case of an existing Private University under a law passed by the Legislative Assembly of a State, such a Memorandum of Understanding shall be signed only after it ceases to be a Private University.

8.6 NOTIFICATION

After signing of the Memorandum of Understanding, the Government shall issue a notification within thirty days declaring the Institution as an Institution of Eminence Deemed to be University. If it is an existing Deemed to be University, such a notification shall automatically imply that the Institution is no longer a Deemed to be University under UGC (Institutions Deemed to be Universities) Regulations, 2016, but an Institution of Eminence Deemed to be University under this Regulation.

9.0 GOVERNANCE SYSTEM

- 9.1 The Governance structure of the Institution of Eminence Deemed to be University should be distinct from the governance structure of the Sponsoring Organization. The apex governing body of the Institution of Eminence Deemed to be University should consist of members / directors whose credentials indicate that they can contribute to achievement of the objectives laid out in Regulation 4, and not be mere representatives of some entity. The Sponsoring Organisation and the apex Governing Body of the University should be separate body corporate, though there could be a few members from Sponsoring Organisation in the apex Governing Body to leverage the full commitment of sponsors to deliver the desired outcomes in a very short-time frame. The governance structure should ensure an arms-length relationship between the two entities.

10.0 FUNDING

There shall be no funding by the Central Government either to existing Private Institutions which have been declared as Institutions of Eminence Deemed to be Universities or to the newly established private Institutions of Eminence Deemed to be Universities under this scheme. However, this would not exclude them for accessing Government funds allocated for specific studies/projects which they may execute.

11.0 ADDITIONAL INCENTIVES

The Institutions of Eminence Deemed to be Universities selected in the aforesaid manner shall have additional incentives. These incentives would be available to all Institutions of Eminence Deemed to be Universities under these Regulations. As such, consistent with the national policy objective of creating an enabling regulatory architecture for these Institutions of Eminence Deemed to be Universities, the Institutions of Eminence Deemed to be Universities shall, upon declaration as

Institutions of Eminence Deemed to be Universities, be governed by the provisions of this Regulation. In particular, such Institutions of Eminence Deemed to be Universities shall be exempt from all UGC Regulations and other guidelines, notifications and orders of the Commission on matters pertaining to the subject areas laid down in Regulation 11.1 to 11.6 of these Regulations.

11.1 Admission and Fees Structure:

- 11.1.1 While domestic students shall have to be selected through a transparent merit based system (which can be designed by the Institution of Eminence Deemed to be University itself), the Institution of Eminence Deemed to be University would be free to admit foreign students on merit as per its internal policies, subject to a maximum of additional thirty percent of the strength of admitted domestic students.
- 11.1.2 The Institution of Eminence Deemed to be University would be free to fix fees, for both domestic and foreign students as per its internal policies, and would be exempted from any fee regulations which may be there in force. However, fee should be fixed in a transparent and upfront manner without any hidden charges to be taken from students. In addition, charging of capitation fee is prohibited and any incident of such charging shall be treated as a serious violation necessitating provisions of penalty as per the law.
- 11.1.3 While fees can be charged from foreign students without restriction, the freedom to determine the domestic student fees shall be subject to the condition that no student who gains admission on merit should be turned away for lack of financing, for which the Institution of Eminence Deemed to be University shall create a credible and robust programme of financial assistance in the form of scholarships and loans to ensure that such students can pursue higher studies without any financial difficulty.
- 11.1.4 Since no existing fee regulation guidelines are to be applicable to such Institutions of Eminence Deemed to be Universities, they will have to set up the institution of Ombudsman to cater to student grievances and allegations of unfair practice, if any. The contact details of the Ombudsman shall be prominently displayed by the Institution of Eminence Deemed to be University on its website, prospectus and at the premises.

11.2 Flexibility in course structure

- 11.2.1 The Institution shall have the freedom to offer courses within a programme as well as to offer degree in newer areas, after approval of its Governing Council and subject to broadly conforming to minimum prevailing standards, without consulting the Commission but with intimation to it.
- 11.2.2 The Institution of Eminence Deemed to be University shall also have flexibility of course structure in terms of credit hours and number of years to take a degree, after approval of its Governing Council and subject to broadly conforming to minimum prevailing standards.
- 11.2.3 The Institution of Eminence Deemed to be University shall have complete flexibility in fixing of curriculum and syllabus, with no UGC mandated curriculum structure.
- 11.2.4 The Institution of Eminence Deemed to be University shall have the freedom to offer online courses as part of its programmes (subject to a limit of twenty percent of any programme). However, this twenty percent restriction would not preclude the Institution of Eminence Deemed to be University from offering certificate courses entirely through online mode.

11.3 Recruitment of faculty:

- 11.3.1 The Institution of Eminence Deemed to be University may recruit faculty from India and abroad. The approach should be to attract the most talented people, no matter where they come from, who are open to new ideas and approaches.
- 11.3.2 The Institution of Eminence Deemed to be University shall have complete autonomy in the appointment of faculty, promotions etc including the autonomy to offer them emoluments and perks commensurate with their standing as it deems fit.
- 11.3.3 The Institution of Eminence Deemed to be University is free to adopt any career progression scheme for its faculty and the UGC Career Advancement Scheme and associated Regulations pertaining to the

same shall not be automatically applicable in such Institutions of Eminence Deemed to be Universities.

- 11.3.4 The Institution of Eminence Deemed to be University may hire personnel from industry, etc. as faculty, who, while being experts in their areas, may not have the requisite higher academic qualifications.

11.4 Academic collaborations:

- 11.4.1 Academic collaborations with foreign higher educational institutions ranked in top 500 in global rankings shall be exempt from approvals by the Government or the Commission, except with Institutions from negative list of countries determined by the Ministry of External Affairs or the Ministry of Home Affairs.
- 11.4.2 The Institutions of Eminence Deemed to be Universities shall be free to enter into academic collaborations with Institutions within the country.

11.5 Financial Autonomy:

- 11.5.1 The Institution of Eminence Deemed to be University shall have complete financial autonomy to spend the resources raised and allocated.

11.6 Inspection:

- 11.6.1 The existing UGC Regulations relating to inspection shall not apply to these Institutions of Eminence Deemed to be Universities.
- 11.6.2 However, the Institution of Eminence Deemed to be University shall work out the details of a self-disclosure-cum-review mechanism to ensure quality, with review being done by the Empowered Expert Committee. The Committee may, if it deems necessary, take assistance of teams consisting of experts from internationally ranked Institutions and from Institutions of National Importance.

12.0 GRIEVANCE REDRESSAL SYSTEM

The Institution of Eminence Deemed to be University shall appoint an Ombudsman to deal with grievances of students and faculty and allegations of unfair practice. The ombudsman selected should be independent of the institution or the management now or in the recent past and concurrence of Empowered Expert Committee shall be taken before appointment of the ombudsman. The contact details of the Ombudsman shall be displayed prominently in the campus, on the homepage of the Institution of Eminence Deemed to be University's website and in the prospectus.

13.0 MONITORING AND REVIEW

- 13.1 The Institutions of Eminence Deemed to be Universities shall be reviewed once in three years after their notification as such by the Ministry of Human Resource Development by the Empowered Expert Committee for adherence to their implementation plans, keeping in view their fifteen year strategic plans. The monitoring and review shall continue till the Institution of Eminence Deemed to be University gets into top one hundred in a world ranking of repute for two consecutive years or till fifteen years, whichever is earlier.

- 13.2 However, the Institutions shall inform the Empowered Experts Committee every year on the progress made in realizing the goals laid out in the implementation and strategic plans, in a manner so prescribed by the Committee.

- 13.3 The Empowered Experts Committee may also evolve such other monitoring and review systems, especially in the initial years, with the objective of guiding and supervising the growth of the Institution of Eminence Deemed to be University.

- 13.4 Apart from this, the Empowered Experts Committee may require the Institutions to annually self-report and publicly display certain information relating to compliance with their implementation and strategic plans,

- 13.5 The annual review exercise should be completed by June each year.

- 13.6 The Committee may suggest remedial action to address deficiencies, if any. The Institution of Eminence Deemed to be University shall take steps to address them within a reasonable time period.

14.0 ACCREDITATION and RANKING

14.1 The Institution of Eminence Deemed to be University, within five years of its notification will have to get accreditation as per Regulation 4.2.15.

14.2 The Institution of Eminence Deemed to be University, within five years of its notification declaring it as an Institution of Eminence Deemed to be University, shall get itself ranked in the National Institutional Ranking Framework and in an International Ranking index of repute. An existing Institution which has been declared Institution of Eminence Deemed to be University should start getting ranked from the year when it gets a Letter of Intent. All Institutions should then continue to get themselves ranked in the National and International ranking frameworks.

15.0 RESERVATION POLICY

The Public Institutions of Eminence shall implement the reservation policy in admissions and recruitment in accordance with any Act of Parliament for the time being in force.

16.0 INSTITUTION TO BE UNITARY

The Institution of Eminence Deemed to be University shall be a unitary Institution Deemed to be University and shall not affiliate any other Institution.

17.0 USE OF THE WORD ‘UNIVERSITY’

The Institution shall not use the word ‘University’ suffixed to its name but may mention the words “Institution of Eminence Deemed to be University” within parenthesis suffixed thereto.

18.0 PROHIBITION OF USE OF CERTAIN WORDS IN NOMENCLATURE

Institution of Eminence Deemed to be University shall not be permitted to use the words, “Indian” or “National Institute” in their respective names unless they have been established by the Central Government or State Government.

19.0 DISTANCE EDUCATION

The Institution of Eminence Deemed to be University may offer courses under distance mode, without any approvals, in accordance with the minimum standards laid down by the Commission. This provision shall also apply to Government owned and controlled Deemed to be Universities which have been declared Institutions of Eminence under UGC (Declaration of Government Educational Institutions as Institutions of Eminence) Guidelines, 2017.

20.0 CORPUS FUND

20.1 In the case of Institutions of Eminence Deemed to be Universities not owned or controlled by the Government, a Corpus Fund as mentioned in Regulation 4.2.11 shall be created and maintained permanently in the name of the Institution of Eminence Deemed to be University.

20.2 The Corpus Fund shall not be liquidated without prior permission of the Empowered Experts Committee.

20.3 The interest accrued on the Corpus Fund may be used only for the purpose of development of the Institution of Eminence Deemed to be University.

20.4 The Empowered Experts Committee may call for the accounts of the Institution of Eminence Deemed to be University to verify compliance with the corpus and other additional guaranteed and committed financing requirements. In the event of withdrawal of the declaration of ‘Institution of Eminence Deemed to be University’ status the Corpus Fund shall stand forfeited to the Commission for meeting the liabilities, if any (including any penalty), and the balance would be returned after meeting the liabilities within one year.

21.0 PENALTIES

21.1 If the Institution of Eminence Deemed to be University is unable to meet the goals at the end of the fifth and subsequent years and there are grave deviations, as determined by the Empowered Expert Committee, from the implementation plan, the Empowered Experts Committee may make appropriate recommendations to the UGC which shall forward it to the Ministry of Human Resource Development to take action under these Regulations.

- 21.2 The Ministry of Human Resource Development, on recommendation of the Empowered Experts Committee as forwarded by the UGC, may take any one or more of the actions given below:
- a) Withdrawing of any or all additional incentives given to it under these Regulations.
 - b) Removal of the Institution of Eminence status and replacing it by ordinary Deemed to be University status, wherein it shall be deemed to be set up under UGC (Institutions Deemed to be Universities) Regulations, 2016.
 - c) Removal of Institution of Eminence Deemed to be University status and asking it to get affiliated to any existing State University.
 - d) Stopping of admissions for specified number of years.

22. AUDIT

The Institution of Eminence Deemed to be University shall be audited every year by a Chartered Accountant and the audit report shall be sent to Commission within nine months of the completion of the financial year.

For the purposes of this Regulation, “Chartered Accountant” shall have the same meaning as contained in the Chartered Accountants Act, 1949.

23. MISCELLANEOUS:

- 23.1 In case there is any difficulty encountered in the course of implementation of any of the provisions, the Government, with intention to remove the difficulty, may give suitable clarifications, not amounting to change in Regulation itself.
- 23.2 The Empowered Experts Committee shall examine proposals on issues not covered in the Regulations and make recommendations to the Competent Authorities.
- 23.3 UGC will provide all secretarial assistance to the programme, including to the Empowered Expert Committee including honorarium to be paid to the members. The expenditure on account of accessing any expert either domestic or international by Empowered Expert Committee shall also be borne by UGC. There shall be no provision for creation of posts.

P. K. THAKUR, Secy.

[ADVT.-III/4/Exty./205/17]